

		Plaintiffs have complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiffs' counsel states the effect of the amendment, why the amendment is necessary and proper, when facts giving rise to the amended allegations were known, and why amendment was not sought earlier. (English Decl., ¶¶ 2-5.) Plaintiff has also included a copy of the amended complaint. (Mot., Ex. B-C.) Thus, Plaintiff has complied with the statutory requirements to move for leave to amend.
7	23-01313302 Carmona vs. Mazella New Tech Corporation	Motion for Summary Judgment and/or Adjudication Cross-Defendant Cal Pac Sheet Metal, Inc. ("Cal Pac") moves for Summary Judgment or, in the alternative, Summary Adjudication as to each of Cross-Complainant Mazzella New Tech Corporation's ("Mazzella") claims alleged in the Cross-Complaint against Cross-Defendant is DENIED. Cal Pac failed to provide Mazzella sufficient notice of the Motion. Code of Civil Procedure section 437c, subdivision (a)(2) requires 81 days' notice for a motion for summary judgment, with an additional two court days if the notice is served electronically. (<i>See</i> Code Civ. Proc., § 437c, subd. (a)(2); Cal. Rules Ct., Rule 2.251(h).) This notice period is mandatory; the court has no discretion to shorten the notice period absent the parties' express stipulation (<i>see McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116; <i>Urshan v. Musicians' Credit Union</i> (2004) 120 Cal.App.4th 758, 763-766); and the court cannot cure a defect in notice by continuing the hearing for the missing number of days (<i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1268). In addition, the court cannot "infer[] from silence" the plaintiff's "waiver of the right to the statutorily mandated minimum notice period for summary judgment hearings." (<i>Urshan v. Musicians' Credit Union, supra</i>, 120 Cal.App.4th at p. 768.) Here, Cal Pac's Proof of Service reflects that Defendants served the instant motion by e-mail on 3-13-26. (ROA No. 292.) Since the moving papers were electronically served, Cal Pac was required to serve the papers on or before 3-12-26. Cal Pac has not submitted any evidence to show Mazzella stipulated to shorten the statutory 81-day notice period, and the court record reflects no such stipulation. Clerk is ordered to give notice.
8	23-01309309 Gutierrez vs. General Motors, LLC	Motion for Attorney Fees Plaintiffs Martha L. Gutierrez and Jose A. Moreno's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$17,136.50. Plaintiffs seek lodestar fees of \$21,101.00, a 0.35 multiplier enhancement of \$7,385.35, \$3,500.00 in anticipated fees, and \$2,193.86 in costs and expenses. Timeliness of motion Defendant General Motors, LLC (GM) contends the motion is untimely as it was filed 189 days after Plaintiffs' filing of a Notice of Settlement.

“Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. [Citations.]” (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 (“*Hatlevig*”).)

Rule 3.1702, subdivision (b)(1) provides: “A notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court-including attorney’s fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.”

Rule 8.104 provides that a notice of appeal must be filed on or before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment.

“A voluntary dismissal is ‘effectively a ‘judgment’ within the meaning of the rule prescribing the time to appeal.” (*Hatlevig, supra*, 118 Cal.App.5th at p. 649.) “Thus, ‘the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).’ [Citation.]” (*Ibid.*) “A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (*Ibid.*)

On 3/17/25, the parties filed a Notice of Settlement. (ROA 189.) On 10/2/25, the parties filed a joint stipulation to dismiss with prejudice and retain jurisdiction pursuant to Code of Civil Procedure section 664.6. (ROA 226.) On 10/16/25, the Court dismissed the case with prejudice pursuant to the stipulation. (ROA 226.) Plaintiffs therefore had until 4/14/26 (180 days from 10/16/25) to file and serve Plaintiffs’ fee motion. Plaintiffs filed their motion on 11/6/25 and it is therefore timely.

Plaintiffs’ request for judicial notice (ROA 230)

In support of their motion, Plaintiffs request judicial notice of a tentative ruling and various court orders.

A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the *existence* of each document a court file, [it] can only take judicial notice of the *truth* of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (*People v. Thacker* (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS Plaintiffs’ request for judicial notice.

Plaintiffs’ evidentiary objections (ROA 254)

Plaintiffs object to various portions of the Declaration of Xylon Quezada.

The Court OVERRULES Plaintiffs’ objections.

Legal standard

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

Plaintiffs’ fraud claim

GM seeks a reduction of 5.3 hours (\$2,863.50) related to Plaintiffs’ fraud claim.

“When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action.” (*Akins v. Enterprise Rent-A-Car Co. of San Francisco* (2000) 79 Cal.App.4th 1127, 1133.)

In addition to their Song-Beverly causes of action, Plaintiffs included a claim for fraud in their complaint, first amended complaint, and second amended complaint. (ROA 2, 44, and 99.)

“[I]s well-established that ‘[a]ttorneys fees need not be apportioned between distinct causes of action where plaintiff’s various claims involve a common core of facts or are based on related legal theories.’” (*Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 408 [citations omitted].) Thus, a Court may elect not to apportion fees where “the claims involved a common core of facts and intertwined legal theories.” (*Ibid.*)

Plaintiffs’ fraud claim is based on the same set of facts, that is, that GM fraudulently concealed defects with the cooling system (see SAC ¶¶ 78, 81, 82) and each of Plaintiffs’ Song-Beverly causes of action relate to this alleged concealment.

As such, the Court declines to reduce fees related to Plaintiffs' fraud claim.

Excessive/unreasonable hours

GM seeks a reduction of fees which it contends are excessive and unreasonable based on Plaintiffs' counsel's use of templates to create various documents.

Complaint

GM seeks a reduction of 1.3 to the 1.8 hours billed to draft the complaint.

Given the similarity of the complaint to other complaints filed by Plaintiffs' counsel, the Court reduces the requested fees by 0.8 hours (\$753.00) (0.5 hours for Ms. Carvalho and 0.3 hours for Ms. Vaziri).

First amended complaint

GM seeks a reduction of 1.5 to the 2.0 hours billed to draft the complaint and first amended complaint.

Given the similarity between the first amended complaint to other amended complaints filed by Plaintiffs' counsel, the Court reduces the requested fees by 1.0 hour (\$595.00) (1.0 hour for Mr. Carroll).

Discovery responses

GM seeks a reduction of 3.0 hours to the 3.5 hours billed to respond to GM's discovery.

Given the largely identical discovery responses previously used by Plaintiffs' counsel, the Court reduces the requested fees by 2.5 hours (\$1,045.00) (1.5 hours for Mr. Tan and 1.0 hour for Mr. Carroll).

Meet and confer

GM seeks a reduction of 1.0 hour to the 1.5 hours billed to draft a meet and confer regarding Plaintiffs' discovery and proposed protective order.

Given the largely identical discovery responses previously used by Plaintiffs' counsel, the Court reduces the requested fees by 1.0 hour (\$395.00) (1.0 hour for Ms. Stoker).

Motions in limine

GM seeks a reduction of 1.4 hours to the 2.4 hours billed to draft motions in limine.

Given the largely identical motions in limine previously used by Plaintiffs' counsel, the Court reduces the requested fees by 1.4 hours (\$833) (1.4 hours for Mr. McCallister).

Trial subpoenas

GM seeks a reduction of the entire 2.2 hours billed to draft trial subpoenas to non-party dealer Selma Chevrolet's Custodian of Records. In addition to contending they were prepared using templates, GM contends they were unnecessary as they "did nothing to advance Plaintiffs' case" and "requested the same documents that Plaintiffs sought from GM." (Opp. at 9:25-26.)

Plaintiffs do not demonstrate why these subpoenas were necessary or otherwise dispute GM's contentions they did not advance Plaintiffs' case and sought duplicative records.

As such, the Court reduces the requested fees by 2.2 hours (\$1,089.00) (2.2 hours for Mr. Orte).

Trial documents

GM seeks a reduction of 3.0 hours to the 4.0 hours billed to draft trial documents as counsel's trial documents "do not vary much from case to case and were never filed in this case." (Opp. at 10:2-3.)

As Plaintiffs do not dispute GM's contentions, the Court reduces the requested fees by 2.0 hours (\$990.00) (2.0 hours for Mr. Orte).

Fee motions/anticipated fees

GM seeks a reduction of 1.1 hours to the 4.1 hours billed to draft the fee motion and the entire 4.0 hours billed for anticipated fees relating to the motion.

Given the similarity between the fee motion and other fee motions filed by Plaintiffs' counsel, the Court reduces Plaintiffs' requested fees by 1.1 hours (\$214.50) (1.1 hour for Ms. Ornelas).

A fee award may include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim. (*Ketchum v. Moses* (24 Cal.4th 1122, 1141.)

GM submits a declaration in support of its reply stating counsel spent 5 hours on the reply and anticipates another 1 to 1.5 hours to prepare for and attend the hearing. (Patel Decl., ¶¶ 4-5.)

While Plaintiffs are entitled to fees incurred in connection with its fee claim, including the reply and appearance at a hearing, the Court finds 6.5 hours excessive and reduces Plaintiffs' requested fees by 3.5 hours (\$1,550.00) (2.5 hours for Mr. Tantanyan and 1.0 hour for Mr. Patel).

Administrative and clerical activities

GM seeks a reduction of 1.5 hours (\$892.50) for clerical and administrative tasks.

Calendaring deadlines, preparing proofs of service, and preparing binders for a hearing, and saving documents to the computer, are examples of tasks that have been found to be clerical and therefore noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.)

The Court does not find the tasks at issue to be noncompensable administrative or clerical tasks and declines to reduce the fees as requested.

Inefficient fees

GM seeks a 10% (\$1,007.10) reduction in fees on the ground 14 timekeepers billed on this matter.

Plaintiffs contend only four attorneys and one law clerk accounted for 27.4 hours out of the 42.2 total hours billed (approximately 70%) with other attorneys performing non-duplicative tasks.

While GM contends the number of attorneys produced inefficient efforts, GM does not specifically identify any examples of resulting inefficiency.

As such, the Court declines to reduce the fees as requested.

Multiplier to the Lodestar

“The Supreme Court has ‘set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.’” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 248, citation omitted.) “The trial court is neither foreclosed from, nor required to, award a multiplier.” (*Id.* at p. 247, citations omitted.)

Plaintiffs seek a 0.35 multiplier of the requested fees. Plaintiffs have not demonstrated this matter is more than a standard Lemon Law action or involved any unusual facts or novel legal issues requiring exceptional skill.

The Court declines to award a multiplier.

		Costs “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a).) Plaintiffs contend GM has not provided sufficient evidence to support the claimed costs nor filed a Memorandum of Costs. While GM relies on <i>Kaufman v. Diskeeper Corp.</i> (2014) 229 Cal.App.4th 1, 8-9, to contend a memorandum of costs is not required, <i>Kaufman</i> involved costs under Civil Code section 1717, not Civil Code section 1794, subdivision (d). As GM has not filed a Memorandum of Costs, costs cannot be claimed in this motion. In summary, the Court reduces the requested Lodestar fees by \$5,914.50, the anticipated fees by \$1,550, and declines to apply a multiplier and award costs. The Court GRANTS Plaintiffs Martha L. Gutierrez and Jose A. Moreno’s Motion for Attorneys’ Fees, Costs, and Expenses in the reduced amount of \$17,136.50.
9	24-01393855 <i>Klinkert vs. Stone Ridge Academy LLC</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record Motion to be Relieved as to Defendant Stone Ridge Academy, LLC The motion of attorney Josue C. Guerrero and law firm Greenacre Law, LLP to be relieved as counsel for defendant Stone Ridge Academy, LLC is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice of ruling which includes notice to Defendant that corporations must be represented by counsel.